



July 17th, 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=SoEI62WUAAAY
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Delaware County Commissioners Meeting Report

Meeting Date: July 17, 2017

Convened Time: 9:00 A.M.

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript contains no record of a statutory public hearing or committee session held immediately prior to calling the regular meeting to order.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at 9:00 a.m. on Monday, July 17, 2017, by the presiding officer.
- **Attendance:**
 - **Members Present:** Mr. Henry, Mr. King, and Ms. Riggins (Cragen).
 - **Members Absent:** None.
 - **Presiding Officer:** Not explicitly designated by title, but leading the proceedings.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** The minutes of the previous meeting held on July 3, 2017, were submitted and approved. (*Disposition: Approved by Voice Vote / Roll Call*)

4. Substantive Business & Board Action

Appointments

- **00:00:47 Airport Authority Appointment**
 - **Sponsor / Presenter:** Commissioner
 - **Deliberation Summary:** The board considered Michael Concannon for an appointment to the Airport Authority board. Commissioners noted his background as a long-time pilot and businessman.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote.

Ordinances for Second Reading

- **00:15:42 Ordinance No. 2017-016: Ordinance Establishing Delaware County Sheriff's JAG Fund**
 - **Sponsor / Presenter:** County Staff
 - **Deliberation Summary:** Established a designated fund to handle Justice Assistance Grant (JAG) monies for the Sheriff's Office.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted unanimously by roll call vote.
- **00:16:13 Ordinance No. 2017-017: Ordinance Amending Section 181 of Delaware County Code Regarding Copy Fees**
 - **Sponsor / Presenter:** County Staff
 - **Deliberation Summary:** Proposed changes to county copy fees had recently been received but not yet incorporated into the text.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled until next month by unanimous roll call vote.
- **00:16:47 Ordinance No. 2017-013: New Floodplain Management Ordinance for Delaware County**
 - **Sponsor / Presenter:** Planning Commission Office
 - **Deliberation Summary:** FEMA and the Indiana Department of Natural Resources (DNR) issued a new floodplain template and updated flood studies (including along York Prairie Creek) with mapping changes effective in August. The updated

ordinance matches these new state and federal templates while keeping substantive regulations consistent with prior policy.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Adopted unanimously by roll call vote.

Ordinances for First Reading

- **00:18:24 Ordinance No. 2017-018: Ordinance to Amend the Text of the Delaware County Comprehensive Zoning Ordinance**

- **Sponsor / Presenter:** Planning Commission Office
- **Deliberation Summary:** Staff explained "minor edits" to update the zoning ordinance to match state standards and requirements:
 - *Public Works:* Added "signs" to protective structures provisions during public works property takings.
 - *Swimming Pools:* Lowered the maximum height requirement for pool fencing from 5 feet to 4 feet to align with the State Department of Building and Fire Safety code.
 - *Residential Facilities:* Updated licensing and category references for facilities serving individuals with developmental disabilities and mental illness.
 - *Limited Business Zone:* Added standardized listings for nursery schools and childcare centers.
 - *Flood Area Zone (FA):* Updated outdated references (such as removing the Army Corps of Engineers and referencing FEMA/new floodplain ordinances) along the Mississinewa and White Rivers.
 - *Note:* Because a public hearing was already conducted by the Planning Commission earlier in the month, this served as the second reading and adoption phase.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Adopted unanimously by roll call vote.

Resolutions for Approval

- **00:17:11 Resolution No. 2017-030: Approving Declaratory Resolution and Economic Development Plan of the Delaware County Redevelopment Commission**
 - **Sponsor / Presenter:** Redevelopment Commission
 - **Deliberation Summary:** Involves an economic development zone project area near Interstate 69.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote.
- **00:24:03 Resolution No. 2017-031: Identifying a Tax Sale Certificate to be Assigned to a Non-Profit Corporation**
 - **Sponsor / Presenter:** Janet Kessler, Tax Sale Deputy (Auditor's Office)

- **Deliberation Summary:** A non-profit requested a severely delinquent tax sale certificate for 4221 East Jackson (carrying roughly \$30,000 in back taxes). A public hearing was scheduled for August 7, 2017.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote.
- **00:25:00 Resolution No. 2017-032: Final Determination Concerning Vacant Parcels Not Sold at Tax Sale**
 - **Sponsor / Presenter:** Janet Kessler, Tax Sale Deputy
 - **Deliberation Summary:** Addressed 22 vacant parcels where applicants paid title search and notification costs, allowing properties to be deeded over to adjacent owners. Specific properties highlighted for formal conveyance included:
 - 3309 West Devon Road (Applicants: Jack Hunter and Michael Clark)
 - 1603 South Jefferson (Applicants: Susan Schlinger and Andrew/Leslie Draper)
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote.

5. Open Public Comment / Citizen Forum

(Note: Presentations and forum comments from local representatives and departments occurred near the end of the agenda)

- **00:02:44 Nate Jones (Delaware County Veterans Affairs Officer) & Robert Smith Jr. (Veterans Upward Bound / Vincennes University):** Presented a collaborative partnership proposal to house Vincennes University's Veterans Upward Bound program (the sole program of its kind in Indiana) directly inside the Delaware County Veterans Affairs office. The initiative aims to create a "one-stop shop" combining disability/pension assistance with educational benefits. Commissioners expressed enthusiastic support and subsequently adopted a formal proclamation declaring **July 17, 2017**, as *Veterans Upward Bound Vincennes University and Delaware County Veterans Affairs Day*.
- **00:09:34 Mack Swartz (Vincennes University Assistant Vice President for Outreach and Engagement):** Spoke in support of the collaborative veterans project, highlighting Vincennes University's nationwide military education programs and praising Delaware County for leading the state in innovative multi-agency veteran support.
- **00:27:25 County Clerk:** Reported two major updates:
 1. Successful back-billing claims through the federal IV-D child support incentive program recovered **\$64,324.24** for the general fund.
 2. The roll-out of electronic court filing (E-filing) launched successfully on Friday, exceeding expectations with 136 electronic filings processed on day one. The office is also expanding bulk paper scanning to reduce off-site storage costs.

- **00:29:31 Payment of Claims:** Presented claims totaling **\$1,064,731.23**. *(Approved unanimously by roll call vote).*
 - **00:30:52 Bridge & Infrastructure Update (Mrs. Moyer):** Provided an update on local bridge repairs, noting that despite heavy recent rainfall and river water levels rising over the Tulsa bridge crossing, the contractor has requested zero additional calendar days. The intermediate completion date remains scheduled for October 27, 2017.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Reminders regarding upcoming events and the ribbon-cutting/open house for the new veteran service provider complex.
 - **Adjournment:** Following a motion to recess/adjourn, the meeting was concluded. *(Disposition: Approved by Voice Vote)*
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